

4-952. Petition to expunge arrest records and public records; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, No.

Petitioner.

**PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER
NMSA 1978, SECTION 29-3A-4 [~~NMSA 1978~~]
(Upon Release without Conviction)**

Petitioner, [] unrepresented by counsel/[] represented by counsel (*select one*), under NMSA 1978,
Section 29-3A-4 [~~NMSA 1978~~], respectfully moves the Court to expunge the arrest records and
public records related to the case and charge(s) below.

1. Information about Petitioner:

Date of Birth: 1961-12-31

Current Mailing Address: 1188 Upper Notch Crossing Rd Apt 14B

City: Truth or Consequences State: NM Zip Code: 87901

Home Phone #: _____ Work Phone #: _____ Cell #: _____

Other names or aliases by which Petitioner has been known (*include prior names, nicknames,
or aliases, especially if your arrest records may reflect a different name*):

2. [] Petitioner has no pending expungement cases in the Seventh Judicial District.
[] Petitioner has the following pending expungement case or cases in the _____ Judicial
District (*provide expungement case numbers for any expungement cases that may be currently
pending before the _____ Judicial District Court*):

3. [] Petitioner has never applied for expungement and been denied.

[] Petitioner has applied for expungement and been denied in the following expungement
cases (*provide the expungement case numbers*): _____

4. The following case(s) and record(s) are the subject of Petitioner's Petition to Expunge
(Include additional pages, if necessary):

District Court case number(s): _____

Metropolitan/Magistrate/Municipal Court case number(s):

M-51-MR-2019-00417

Law Enforcement Agency case number(s): _____

Arrest number(s): _____

5. The following appellate court cases(s) are related to Petitioner's Petition to Expunge:

Court of Appeals case number(s): _____

Supreme Court case number(s): _____

[5.] 6. Petitioner was released without conviction for the following charges: (Complete for each
charge sought to be expunged. Include additional pages if necessary.)

(1) Date of arrest: _____

Name of offense and statute/ordinance number: _____

Final disposition of offense: (check one) ☐ acquittal or finding of not guilty ☐ nolle

prosequi ☐ no bill ☐ referral to pre-prosecution diversion program ☐ Order of Conditional

Discharge under Section 31-20-13 (1994) NMSA 1978 ☐ other dismissal/discharge

(explain): _____

Degree of offense, if known (e.g., misdemeanor, petty misdemeanor, etc.): _____

Date of final disposition: _____

☐ Check if additional pages attached.

[6.] 7. ☐ Petitioner has no cases related to the charges sought to be expunged.

☐ The following cases are related to the charges sought to be expunged: (Include case names
and numbers for any cases that were joined either with a co-defendant or joined as the result
of a plea.)

[7.] 8. ☐ It has been one (1) year or more since the date of the final disposition of the charge(s)
Petitioner seeks to expunge.

[8.] 9. ☐ There is no other charge or proceeding pending against Petitioner.

[9.] 10. Petitioner asks this Court for an Order to Expunge arrest records and public records in
the custody of the following agencies:

☐ District Court in the Seventh Judicial District;

- ☐ _____ County Sheriff's Department;
☐ District Attorney for the _____ Judicial District;
☐ New Mexico Department of Public Safety
☐ Law Enforcement Agency (*name of agency that arrested Petitioner*); _____
☐ Metropolitan/Magistrate/Municipal Court in _____ (*location*);
☐ New Mexico State Police Investigations Bureau
☐ Other _____

~~[10.]~~ 11. ☐ A copy of this Petition, when filed with the Court, will be mailed by first class United States mail to:

- (1) The District Attorney in the _____ Judicial District
(The District Attorney in the Judicial District where Petitioner's charge originated)

(Address)

- (2) The New Mexico Department of Public Safety
P.O. Box 1628, Santa Fe, New Mexico 87504-1628

~~[11.]~~ 12. The charges sought to be expunged were originally disposed of or originated in (*select one*)

- ☐ District Court in the _____ Judicial District
☐ Metropolitan Court in _____ (*location*)
☐ Magistrate Court in _____ (*location*)
☐ Municipal Court in _____ (*location*)

~~[12.]~~ 13. Petitioner has included Petitioner's State of New Mexico, Department of Public Safety Record of Arrest and Prosecution (RAP) sheet, dated no later than ninety (90) days prior to the filing of the petition.

~~[13.]~~ 14. Petitioner has also included the following documentation related to Petitioner's criminal history:

- a. Docket sheet, arrest sheet, or other record detailing the offenses Petitioner is seeking to expunge;
b. Documentation showing final disposition of the charges Petitioner is seeking to expunge;
c. Other: _____
(*list any other documentation provided with the petition*).

~~[14.]~~ 15 ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other electronic means as provided for in Rule 1-077.1(J) NMRA.

SIGNATURE SECTION

I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Maria-Alejandra O'Shaughnessy-Whitfield

Printed name of Petitioner

Date

Signature of Petitioner

1188 Upper Notch Crossing Rd Apt 14B, Truth or Consequences, NM 87901

Mailing Address

Telephone Number

Email

Attorney Name (*if applicable*)

Date

Attorney Signature

Mailing Address

Telephone Number

Email

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after December 31, 2025.]

4-955. Certificate of service; expungement of records upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

CERTIFICATE OF SERVICE

(Required for Petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))

I hereby certify that on the _____ (day) of _____ (month) _____ (year), an endorsed copy of the Petition to Expunge New Mexico Arrest Records and Public Records under Section 29-3A-4 NMSA 1978, filed on _____ (date), and this Certificate of Service were mailed via first-class United States mail to:

- ☐ The New Mexico Department of Public Safety
P.O. Box 1628, Santa Fe, New Mexico 87504-1628
- ☐ The district attorney in the _____ Judicial District
- _____
(Address)

☐ Petitioner is pro se **OR** ☐ Petitioner is represented by counsel

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Petitioner Printed Name

Attorney Printed Signature

Petitioner Address

Attorney Address

Petitioner Telephone Number

Attorney Telephone Number

Petitioner Signature

Attorney Signature

Date of Signature

Date of Signature

USE NOTES

This certificate of service must be filed with the district court.

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

4-959. Notice of completion of briefing; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, No.
Petitioner.

NOTICE OF COMPLETION OF BRIEFING

(for use with petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expungement Arrest Records and Public Records and that the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

☐ The District Attorney in the _____ Judicial District;

☐ The New Mexico Department of Public Safety.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District ~~[Attorney]~~ Attorney's Response[:]

☐ The district attorney has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ The district attorney has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from the district attorney.

☐ The New Mexico Department of Public ~~[Safety]~~ Safety's (DPS) Response[:]

☐ DPS has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ DPS has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from DPS.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.2 NMRA) with this Notice of Completion of Briefing.

1
2 Maria-Alejandra O'Shaughnessy-Whitfield

3 Printed name of Petitioner

4
5 Signature of Petitioner

6 1188 Upper Notch Crossing Rd Apt 14B, Truth or Consequences, NM 87901

7 Mailing Address

8
9 Telephone Number

10
11 Date

12
13
14 Attorney Name (if applicable)

15
16 Attorney Signature

17
18 Mailing Address

19
20 Telephone Number

21
22 Email

23 **CERTIFICATE OF SERVICE**

24 I hereby certify that on this _____ day of _____, _____ this Notice of
25 Completion of Briefing was served by United States first class mail on the following:

26
27 (The District Attorney in the _____ Judicial District)

28
29 (Address)

30
31 (Telephone)

32
33
34 **AND**

35
36 **New Mexico Department of Public Safety**
37 P.O. Box 1628, Santa Fe, New Mexico, 87504-1628
38 (505) _____
39
40
41

42 Signature of person sending paper
43 _____

Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]

4-960.2. Affirmation in support of expungement; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Release without Conviction)

I, Maria-Alejandra O'Shaughnessy-Whitfield, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction), and hereby affirm the following:

☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

OR

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court: _____

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

(*Petitioner Signature*)

Maria-Alejandra O'Shaughnessy-Whitfield
(*Print Name*)

1188 Upper Notch Crossing Rd Apt 14B, Truth or Consequences, NM 87901
Street Address City State Zip Code

(*Telephone*)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

4-960.1. Notice of hearing.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

NOTICE OF HEARING

Petitioner may be entitled to expungement of arrest records or public records under the Criminal Record Expungement Act, Sections 29-3A-1 to -9 NMSA 1978. A hearing in this matter is set before the Honorable _____ as follows:

1. Date of Hearing: _____
2. Time of Hearing: _____
3. Length of Hearing: _____
4. Place of Hearing: _____

5. Matter(s) to be heard: _____

HONORABLE _____
By _____
TCAA

PARTIES ENTITLED TO NOTICE:

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner Name

1188 Upper Notch Crossing Rd Apt 14B, Truth or Consequences, NM 87901

Petitioner Address

Petitioner Telephone Number

Petitioner Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

USE NOTES

For the purpose of this form, the parties entitled to notice include the petitioner and any party that filed and served objections to the petition for expungement pursuant to Rule 1-077.1(G)(1) NMRA no later than sixty-three (63) days from the date of service. See Rule 1-077.1(G)(1) (providing sixty (60) days for a party entitled to notice to file an objection); Rule 1-077.1(E)(3) NMRA (providing for service by mail for actions filed pursuant to Rule 1-077.1); Rule 1-006(C) (providing for three (3) additional days where service is made by mail).

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

4-222. Application for free process and affidavit of indigency.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh Judicial District **COURT**

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner,

v.

No. _____

_____, Respondent.

APPLICATION FOR FREE PROCESS AND AFFIDAVIT OF INDIGENCY

I request that the court enter an order permitting me to file this case without prepayment of fees and costs and give upon my oath or affirmation the following statement.

My marital status is: Single ____ Married ____ Divorced ____ Separated ____ Widowed ____

I request interpretation services: ____ yes ____ no (If yes, please describe what you need)

INFORMATION ABOUT MY FINANCES (check all that apply to you and fill in the blanks):

A. PUBLIC ASSISTANCE

____ I do not receive public assistance (If you check this blank, go directly to Section B EMPLOYMENT/UNEMPLOYMENT).

____ I currently receive the following public assistance in _____ County (please check all applicable public assistance programs):

- ____ Temporary Assistance for Needy Families (TANF)
- ____ Food Stamps
- ____ Medicaid (for myself)
- ____ General Assistance (GA)
- ____ Supplemental Security Income (SSI)
- ____ Public Housing
- ____ Disability Security Income (DSI)
- ____ Department of Health Case Management Services (DHMS)
- ____ Other (please describe _____)

B. EMPLOYMENT/UNEMPLOYMENT

____ I am currently unemployed and have been unemployed for ____ months in the past year. I am unemployed because _____.

____ I receive unemployment benefits in the amount of \$_____ per month.

____ I have no income because I am unemployed.

____ I am employed. I am paid \$_____ per hour and work ____ hours per week.

My employer's name, address and phone number is:

____ I am married, and my spouse is unemployed and has been unemployed for ____ months in the past year because _____.

____ My spouse receives unemployment benefits in the amount of \$_____ per month.

____ I am married, and my spouse is employed. My spouse is paid \$_____ per hour and works _____ hours per week.

My spouse's employer's name, address and phone number is:

C. OTHER SOURCES OF INCOME (*Check all that apply*)

____ I have income from another source not mentioned above.

____ Child Support \$_____

____ Alimony \$_____

____ Investments \$_____

____ Community property from my spouse \$_____

____ Other _____ \$_____

____ I do not have any other sources of income.

____ I am married, and my spouse has income from another source not mentioned above.

____ Child Support \$_____

____ Alimony \$_____

____ Investments \$_____

____ Other _____ \$_____

____ Other _____ \$_____

____ I am married, and my spouse does not have any other sources of income.

____ Another adult contributes to household income in the following amount: \$_____

D. OTHER ASSETS (Please list other assets owned by you or your spouse that can be turned into cash. Do not include money you have in retirement accounts):

Cash on hand \$ _____
Bank accounts \$ _____
Income tax refund \$ _____
Other assets (describe below):
_____ \$ _____
_____ \$ _____

IF YOU DO NOT HAVE ACCESS TO YOUR OWN OR YOUR SPOUSE'S INCOME OR ASSETS, EXPLAIN WHY.

E. MONTHLY EXPENSES

House Payment/Rent \$ _____
Utilities \$ _____
Telephone \$ _____
Groceries (after food stamps) \$ _____
Car Payment(s) \$ _____
Gasoline \$ _____
Insurance \$ _____
Child Care \$ _____
Student and Consumer Loans \$ _____
Court-ordered family support obligations \$ _____
Other court-ordered payments \$ _____
Medical expenses \$ _____
Other _____ \$ _____

F. HOUSEHOLD

I live at 1188 Upper Notch Crossing Rd Apt 14B, Truth or Consequences, NM 87901 _____,
and the head of the household is _____.

Other than myself, the other members of the household are:

<u>Name</u>	<u>Age</u>	<u>Employment</u>	<u>I Support</u>
_____	_____	_____	()

This statement is made under oath. I hereby state that the above information regarding my financial condition is correct to the best of my knowledge. I hereby authorize the Court to obtain information from financial institutions, employers, relatives, the federal internal revenue service and other state agencies. If at any time the Court discovers that information in this application for free process was false, misleading, inaccurate, or incomplete at the time the application was submitted, the Court may require me to pay for any costs or fees that were waived under an order of free process that was granted based on the information in this application.

4

Signed and sworn to (or affirmed) before me on _____ (date)
by _____ (name of applicant).

Notary

My commission expires: _____

IF YOU ARE REPRESENTED BY AN ATTORNEY, YOUR ATTORNEY MUST SIGN THE FOLLOWING CERTIFICATE.

I, _____, hereby certify that I have not received any attorney
(Name of attorney)

fee to represent _____. If any attorney fee is paid to me, I understand
(Name of applicant)

that I shall pay to the court clerk from such attorney fee any court fees and costs that may
be waived by the court.

(Attorney signature)

Address

City, State, Zip Code

Telephone/Fax Number

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011.]